

STATE OF NEW YORK

9157--A

IN SENATE

February 9, 2026

Introduced by Sen. BORRELLO -- read twice and ordered printed, and when printed to be committed to the Committee on Investigations and Government Operations -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the tax law, in relation to authorizing the city of Batavia to impose a hotel and motel tax; and providing for the repeal of such provisions upon expiration thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The tax law is amended by adding a new section 1202-rr to
2 read as follows:

3 § 1202-rr. Hotel or motel taxes in the city of Batavia. (1) a.
4 Notwithstanding any other provisions of law to the contrary, the city of
5 Batavia, Genesee county, is hereby authorized and empowered to adopt and
6 amend local laws imposing in such city a tax, in addition to any other
7 tax authorized and imposed pursuant to this article such as the legisla-
8 ture has or would have the power and authority to impose upon persons
9 occupying hotel or motel rooms in such city. For the purposes of this
10 section, the term "hotel" or "motel" shall mean and include any facility
11 providing lodging on an overnight basis and shall include those facili-
12 ties designated and commonly known as "bed and breakfast" and "tourist"
13 facilities.

14 b. The rates of such tax shall not exceed three percent of the per
15 diem rental rate for each room, provided however, that such tax shall
16 not be applicable to a permanent resident of a hotel or motel. For the
17 purposes of this section, the term "permanent resident" shall mean a
18 person occupying any room or rooms in a hotel or motel for at least
19 thirty consecutive days.

20 (2) Such tax may be collected and administered by the chief fiscal
21 officer of the city of Batavia by such means and in such manner as other
22 taxes which are now collected and administered by such officer or as
23 otherwise may be provided by such local law.

24 (3) Such local laws may provide that any tax imposed shall be paid by
25 the person liable therefor to the owner of the hotel or motel room occu-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 pied or to the person entitled to be paid the rent or charge for the
2 hotel or motel room occupied for and on account of the city of Batavia
3 imposing the tax and that such owner or person entitled to be paid the
4 rent or charge shall be liable for the collection and payment of the
5 tax; and that such owner or person entitled to be paid the rent or
6 charge shall have the same right in respect to collecting the tax from
7 the person occupying the hotel or motel room, or in respect to nonpay-
8 ment of the tax by the person occupying the hotel or motel room, as if
9 the tax were a part of the rent or charge and payable at the same time
10 as the rent or charge; provided, however, that the chief fiscal officer
11 of the city, specified in such local law, shall be joined as a party in
12 any action or proceeding brought to collect the tax by the owner or by
13 the person entitled to be paid the rent or charge.

14 (4) Such local laws may provide for the filing of returns and the
15 payment of the tax on a monthly basis or on the basis of any longer or
16 shorter period of time.

17 (5) This section shall not authorize the imposition of such tax upon
18 any transaction, by or with any of the following in accordance with
19 section twelve hundred thirty of this article:

20 a. The state of New York, or any public corporation (including a
21 public corporation created pursuant to agreement or compact with another
22 state or the Dominion of Canada), improvement district or other poli-
23 tical subdivision of the state;

24 b. The United States of America, insofar as it is immune from taxa-
25 tion;

26 c. Any corporation or association, or trust, or community chest, fund
27 or foundation organized and operated exclusively for religious, charita-
28 ble or educational purposes, or for the prevention of cruelty to chil-
29 dren or animals, and no part of the net earnings of which inures to the
30 benefit of any private shareholder or individual and no substantial part
31 of the activities of which is carrying on propaganda, or otherwise
32 attempting to influence legislation; provided, however, that nothing in
33 this paragraph shall include an organization operated for the primary
34 purpose of carrying on a trade or business for profit, whether or not
35 all of its profits are payable to one or more organizations described in
36 this paragraph.

37 (6) Any final determination of the amount of any tax payable pursuant
38 to this section shall be reviewable for error, illegality or unconstitu-
39 tionality or any other reason whatsoever by a proceeding under article
40 seventy-eight of the civil practice law and rules if application there-
41 for is made to the supreme court within thirty days after the giving of
42 the notice of such final determination, provided, however, that any such
43 proceeding under article seventy-eight of the civil practice law and
44 rules shall not be instituted unless:

45 a. The amount of any tax sought to be reviewed, with such interest and
46 penalties thereon as may be provided for by local law or regulation
47 shall be first deposited and there is filed an undertaking, issued by a
48 surety company authorized to transact business in this state and
49 approved by the superintendent of financial services of this state as to
50 solvency and responsibility, in such amount as a justice of the supreme
51 court shall approve to the effect that if such proceeding be dismissed
52 or the tax confirmed the petitioner will pay all costs and charges which
53 may accrue in the prosecution of such proceeding; or

54 b. At the option of the petitioner such undertaking may be in a sum
55 sufficient to cover the taxes, interests and penalties stated in such
56 determination plus the costs and charges which may accrue against it in

1 the prosecution of the proceeding, in which event the petitioner shall
2 not be required to pay such taxes, interest or penalties as a condition
3 precedent to the application.

4 (7) Where any tax imposed pursuant to this section shall have been
5 erroneously, illegally or unconstitutionally collected and application
6 for the refund thereof duly made to the proper fiscal officer or offi-
7 cers, and such officer or officers shall have made a determination deny-
8 ing such refund, such determination shall be reviewable by a proceeding
9 under article seventy-eight of the civil practice law and rules,
10 provided, however, that such proceeding is instituted within thirty days
11 after the giving of the notice of such denial, that a final determi-
12 nation of tax due was not previously made, and that an undertaking is
13 filed with the proper fiscal officer or officers in such amount and with
14 such sureties as a justice of the supreme court shall approve to the
15 effect that if such proceeding be dismissed or the tax confirmed, the
16 petitioner will pay all costs and charges which may accrue in the prose-
17 cution of such proceeding.

18 (8) Except in the case of a willfully false or fraudulent return with
19 intent to evade the tax, no assessment of additional tax shall be made
20 after the expiration of more than three years from the date of the
21 filing of a return, provided, however, that where no return has been
22 filed as provided by law the tax may be assessed at any time.

23 (9) All revenues resulting from the imposition of the tax under the
24 local laws shall be paid into the treasury of the city of Batavia and
25 shall be credited to and deposited in the general fund of the city. The
26 city shall be authorized to retain the necessary revenue, in an amount
27 not to exceed four percent of the total revenue, to defer the expense of
28 the city in administering such tax and the balance of such revenues
29 shall be allocated to community and economic development, planning and
30 tourism.

31 (10) If any provision of this section or the application thereof to
32 any person or circumstance shall be held invalid, the remainder of this
33 section and the application of such provision to other persons or
34 circumstances shall not be affected thereby.

35 (11) Each enactment of such local law may provide for the imposition
36 of a hotel or motel tax for a period of time no longer than three years
37 from the effective date of its enactment. Nothing in this section shall
38 prohibit the adoption and enactment of local laws, pursuant to the
39 provisions of this section, upon the expiration of any other local law
40 adopted pursuant to this section.

41 § 2. This act shall take effect immediately and shall expire and be
42 deemed repealed December 31, 2029.